Marker feedback on the submission (verbatim)

Two independent hostile markers read the submission cold and tried to break it. Their sheets follow verbatim. They marked the text immediately before the final file. Since then, the certain defect both found (the past consideration sentence) has been fixed with *Pao On* 629 to 630, and the zero-cost points they agreed on have been applied (conclusion-first opening, ‘clearly’, ‘as his check-ins did’, ‘though not necessarily by signing’, ‘Silence while a clause is included’). Marker A’s second certain defect (the agency branch) was raised by one marker only, so it has not been applied.

Marker A

MARK A (hostile examiner): f9

Answer marked: MARKS/f9/in/ANSWER.md, taken at face value. Every pin and quotation below was read at the casebook page or the saved official judgment. The verifier run (scratchpad f9mA.json) returns 38 quotations, 0 FAIL, and one CHECK PIN (Brambles 176), which is the known parser artefact: the Lord Greene MR passage sits between the [176] and [177] markers on casebook page 77, so 176 is right. The body counts 1,495 words, so the stated ‘Word count: 1,498’ is correct under R-P, and the slack to the 1,497 ceiling is 2 words.

1. Certain defects

C1. The past consideration sentence states the law categorically and ignores the exception that the facts trigger (II.I3)

Exact sentence (paragraph II.7): “If Pierre promised personally, AMPL’s earlier advance is past consideration and cannot support it,[^33] but AMPL’s stronger answer is that it signed the Loan Agreement only after the clause was included, an act likely ‘really done in consideration of’ the guarantee,[^34] so the guarantee is likely supported if Rocky assented.”

Source evidence: the Pao On extract (W2 C2A, Lord Scarman for the Board) states that ‘An act done before the giving of a promise to make a payment or to confer some other benefit can sometimes be consideration for the promise. The act must have been done at the promisors’ request: the parties must have understood that the act was to be remunerated either by a payment or the conferment of some other benefit: and payment, or the conferment of a benefit, must have been legally enforceable had it been promised in advance.’ In Pao On the later benefit was itself a guarantee, so the case is directly in point. The facts say that on 27 February ‘Rocky asked’ AMPL to advance the money, which is the first Pao On condition, and the answer itself relies on ‘asked’ in paragraph II.3 to show that no guarantee then existed. Roscorla at 237 states only the general rule, and the sheet (II.I3 core) requires Pao On’s first condition to be met on ‘Rocky asked’ and its second on timing. ‘Cannot support it’ is therefore wrong as a statement of the law the answer is confined to, and the same fact is used one way in II.3 and ignored in II.7 (R10).

Exact fix: replace “is past consideration and cannot support it,[^33] but” with “is past consideration[^33] unless, Rocky having ‘asked’ for it, both understood it ‘was to be remunerated’,[^new] but”, and add the footnote “*Pao On v Lau Yiu Long* [1980] AC 614, 629–30 (Lord Scarman for the Board).” The words ‘but AMPL’s stronger answer’ that follow already signal that the second condition is the weak link, because on 27 February the parties understood the advance to be repaid by Grace, not rewarded by Rocky.

Word cost: +9. Funding, all zero-loss: delete ‘clearly’ in II.3 (-1, it is also rhetoric); ‘so on balance the loan’ to ‘so the loan’ in I.3 (-2, a double hedge with ‘likely’); ‘Finally, the $10,000’ to ‘The $10,000’ (-1); ‘Further, having’ to ‘Having’ (-1); ‘Rocky would say that his’ to ‘Rocky would say his’ (-1); ‘AMPL would argue that the term’ to ‘AMPL would argue the term’ (-1). Net +2, body 1,497, at the ceiling.

C2. The Part I conclusion rests on a branch the answer never analyses: whether AMPL’s advance was Rocky’s loan (I.F1, omitted)

Exact sentence (paragraph I.6): “Thus Rocky has no contractual claim against Grace, whenever the 12 months began, and Grace likely has none against him for failing to lend.”

Source evidence: paragraph I.4 leaves the email binding as a live possibility (‘unless the conditions were settled ’this morning’‘). On that branch Grace’s implied promise to repay (paragraph I.2) ran to Rocky, and Rocky’s best claim against Grace is that the advance he ’asked’ AMPL to make performed his promise to lend, AMPL acting as his agent. The answer never puts or meets this, although it is the only route by which Rocky could be owed anything by Grace, and the facts that decide it are in the problem: Rocky offered ‘$1 million’, AMPL advanced ‘$1,150,000’ on 27 February (not ‘by 15 February’), at 4% not 5%, and took Rocky’s personal guarantee, which a principal lending through an agent would not need. The criterion is already in the answer at fn 21 (Lord Reid’s conditions, quoted by Mason and Jacobs JJ in Port Jackson at 268 to 269: the contracting party must be ‘contracting as agent’ with ‘authority’). The unqualified conclusion is therefore unsupported on one of the answer’s own branches, and the sheet grades I.F1 as Omitted (2.5 points) and marks it ‘Strong’.

Exact fix: replace “Thus Rocky has no contractual claim” with “Even if the email bound, AMPL, though Rocky ‘asked’ it, advanced ‘$1,150,000’, not ‘$1 million’, and took his guarantee, so it likely lent for itself rather than as his agent,[^new] and thus Rocky has no contractual claim”. The new footnote takes the full Port Jackson citation now at fn 21 (the first citation moves earlier): “*Port Jackson Stevedoring Pty Ltd v Salmond & Spraggon (Aust) Pty Ltd* (1978) 139 CLR 231, 269 (Mason and Jacobs JJ), rev’d (1980) 144 CLR 300 (‘*Port Jackson*’).” Old fn 21 then reads “*Port Jackson* (n X) 269 (Mason and Jacobs JJ), quoting *Scruttons Ltd v Midland Silicones Ltd* [1962] AC 446, 474 (Lord Reid).”

Word cost: +31, which C1’s funding cannot also carry. This is a real trade-off, so the dial is shown rather than picked: - (a) Delete “Their only binding contract, the Development Agreement, operates only ‘if the Project made a profit’, and no breach of it is shown; nor did” and start “Nor did Grace promise…” (-22). Cost: the P unit loses the Development Agreement as stipulated (Excellent to Very Good, about -0.5), against +2.5 gained at I.F1. - (b) Delete “as his check-ins did” in II.5 (-4). Cost: the check-ins fact goes unused; its present use is cryptic anyway. - (c) Delete “, though not necessarily by signing,” in II.6 (-5). Cost: the link to Mrs Coulls’ signature in I.5 is lost, but I.5 already makes the point. (a) + (b) + (c) = -31 exactly; with C1 funded as above the body ends at 1,497.

No other certain defect survived checking. Every quotation passes, every pin below was confirmed, the word count line is right, there are no em dashes, contractions, double quotation marks or first person, and no meta language or slide citation (R-Z).

2. Contestable points

1. Gibbs CJ's view stated as the law (I.3, fn 8). "'satisfactory' leaves the judgment to the party the condition protects" is Gibbs CJ's subjective reading at 580 to 581 ('it is the satisfaction of the purchaser, not that of some hypothetical reasonable man'); Mason J at 589 to 590 requires the judgment to be reached 'honestly, or honestly and reasonably', so the proposition is not the Court's (the sheet's D3 example). The footnote names Gibbs CJ, which softens it. Fix: 'satisfactory' to 'satisfactory' arguably (+1). Also, 'here Rocky' is asserted; a reason ('as the lender who set the conditions') costs +6.
2. 'Silence while others draft a clause' (II.6) implies that others drafted it and that Rocky was silent, neither of which is narrated (D4 risk; R-M). Zero-cost fix: 'Silence while a clause is included'.
3. 'since Pierre spoke as AMPL's controller rather than as a cousin' (II.4) states a derived fact without a hedge (D4 risk). Fix: 'since Pierre arguably spoke' (+1).
4. Pierre's 'expected' is labelled an 'invitation to treat' (II.1). Gibson's distinction is between an offer and an invitation to treat; a statement of what one party expects the other to do is better called a request, which is also what the consideration analysis needs (the sheet's II.A core). Zero-cost fix: 'so it was likely a request, not an offer'.
5. Lord Greene MR's words in Eccles were said of exchanges of contracts for land, which Heydon JA lists as one example among several (Brambles 176). The answer uses them for an oral bargain at a meeting without noting that context (II.B core: 'the analogy disclosed'). Fix: add 'said of exchanges of contracts,' (+5).
6. Integrated Computer Services at 11,117 to 11,118 (fn 18) is a passage whose point is that commercial dealings often do not fit offer and acceptance; it is cited for the classical 'exchange of promises'. The words are there ('the typical contract is a bilateral one and consists of an exchange of promises'), so this is accurate, but a lecturer may write 'check this passage supports your point'. No change needed.
7. Rocky's bullets (I.1) are dismissed as points that 'promise nothing' without quoting their deciding words ('Potential', 'wait and see'). Fix: "its other points, 'Potential' and 'wait and see', promise nothing" (+5).
8. The 12 months (II.8) does not use the interest pattern (monthly interest 'Between 8 April 2024 and 8 February 2025', which fits a term running from 8 April) or say which post-contractual conduct is excluded (Grace's 'I have until 8 April 2025' and AMPL's reply on 7 March). Fix: after 'cannot interpret the term,' add 'so the 7 March exchanges are irrelevant,' (+6). The interest point costs about +15 and is a credit, not a core.
9. II.C2 does not name Pao On at 632 for the Pierre branch (a promise to perform a duty owed to a third party is good consideration). The answer's 'with the promisee' reasoning reaches the same result, so this is a citation gap rather than an error. Fix only if words allow (+12).
10. fn 21 places 'rev'd (1980) 144 CLR 300' after the 'quoting Scruttons' clause, so a reader may think Scruttons was reversed. AGLC4 puts subsequent history immediately after the citation it relates to. Zero-cost fix: move it before 'quoting' (done in C2's footnote form above).
11. Roscorla fn 33 pins 237; the general rule runs across 236 to 237 ('subject to excep-[237]tions'). Fix: '236–7' (0 words, footnote).
12. II.9's 'which bound immediately' gives Meehan's reason in two words; the sheet wants it visible ('Certain obligations under the contract attached immediately', Meehan 582: here Rocky's undertaking). Fix: 'which bound immediately, Rocky's undertaking attaching at once' (+4).
13. The Part II conclusion's 'once the Loan is due and unpaid' does not address the arguable March interest instalment (II.I4 credit): if the term ran from 8 April, interest for March fell due before the call, and non-payment of it, if any, is not narrated. A credit, not a core.

3. Currency of each authority (WebSearch and source check)

Authority	Status	Note
Gibson v Manchester City Council [1979] 1 WLR 294 (HL)	Good law	298 confirmed (Lord Diplock)
Empirnall (1988) 14 NSWLR 523 (NSWCA)	Good law	534, 535 to 536 confirmed (McHugh JA)
Australian Woollen Mills (1954) 92 CLR 424	Good law	456 'really done in consideration of' confirmed; 456 to 457 quid pro quo
Ermogenous (2002) 209 CLR 95	Good law	[25] objective, status of parties; [26] presumptions 'invite attention to identifying the party who bears the onus'
Masters v Cameron (1954) 91 CLR 353	Good law	363 confirmed: Jessel MR's words in Winn v Bull at 32, quoted by the Court
Godecke v Kirwan (1973) 129 CLR 629	Good law	642 Walsh J; 646 to 647 Gibbs J's dictum is obiter and the answer presents it as a doubt, correctly
Meehan v Jones (1982) 149 CLR 571	Good law	580 to 581, 581, 582 Gibbs CJ; 589 to 590 Mason J quoting Thorby 605; see contestable 1
Coulls (1967) 119 CLR 460	Good law	486, 487 Taylor and Owen JJ (majority on construction); 494 to 495 Windeyer J correctly marked dissenting
Brambles (2001) 53 NSWLR 153 (NSWCA)	Good law	164, 176, 177 Heydon JA; 191 Ipp AJA (the official judgment reads 'Ipp AJA'; the casebook's 'IPP JA' is the later title)
Port Jackson (1978) 139 CLR 231	Reversed by the Privy Council, (1980) 144 CLR 300; [1981] 1 WLR 138 (The New York Star)	Mason and Jacobs JJ were in the High Court majority and were reversed on the result, not on Lord Reid's agency requisites, which the Board applied; the answer discloses 'rev'd', correctly, but see contestable 10 on placement
TA Sundell (1955) 56 SR (NSW) 323	Good law	327, the Court's own words via the casebook note, no judge named, correctly
Wigan v Edwards (1973) 47 ALJR 586	Good law	594 Mason J confirmed
Banque Brussels (1989) 21 NSWLR 502	Good law (first instance, Rogers CJ Comm D)	523 confirmed
Upper Hunter (1968) 118 CLR 429	Good law	437 Barwick CJ quoting Lord Wright in Scammell 268
Trident (1988) 165 CLR 107	Good law; no privity reform carried a majority	Cited by report with Deane J named and no pin, as R-Y requires
Roscorla v Thomas (1842) 3 QB 234	Good law, subject to the Pao On exception	See C1

4. Margin comments, paragraph by paragraph

- I.1 (offer): Good start from Rocky's position and a clean Gibson contrast on the deciding words ('I will lend' against 'may be prepared to sell'). Quote the bullets' deciding words rather than asserting that they 'promise nothing'.
- I.2 (acceptance, consideration): Correct and economical. 'qualifier included' is the right move, carried into I.3.
- I.3 (intention): Strong; both sides with authority. 'here Rocky' needs its reason, and 'satisfactory' is Gibbs CJ's reading, not the Court's. 'on balance' and 'likely' together double-hedge.
- I.4 (certainty): Well distinguished: Meehan's honesty answer applies to an external condition, not to the content of the promise. This is the best paragraph in Part I.
- I.5 (privity): Correct on party status from the instrument and the joint-promisee point; the Mrs Coulls signature point is well used against Grace's words.
- I.6 (conclusion): Further analysis is required as your statement is conclusive: even if the email bound, did Rocky lend anything? Meet 'Rocky asked' against '$1,150,000', the date, the rate and the guarantee (C2).
- II.1 (offer, acceptance): 'expected' is better a request than an invitation to treat. Lord Greene MR's words were said of exchanges of contracts; disclose the analogy.
- II.2 (agency): Good use of 'you' against Pierre's control and the place of the meeting. State what further information would settle it (whom Pierre said he spoke for).
- II.3 (consideration): The 'also' argument is put and met well, and 'all payments' 'promptly' against 'repayment of the Loan' is the strongest point in the answer. Drop 'clearly'.
- II.4 (intention): Correct use of Ermogenous on presumptions. 'Pierre spoke as AMPL's controller' needs a hedge.
- II.5 (certainty, content): 'as his check-ins did' is cryptic; say what the check-ins show or drop them.
- II.6 (guarantee assent): Good on privity's burden aspect and on Empirnall; the answer to it is put fairly. 'while others draft' is not in the facts.
- II.7 (consideration for the guarantee): Ensure your statement of the law is complete: Rocky 'asked' for the advance, so Pao On must be met before Roscorla applies (C1).
- II.8 (the 12 months): Method is right (ambiguity, genesis, later conduct excluded) and the 'recorded' point is clever. Name the conduct excluded and consider the interest pattern.
- II.9 (the condition): Correct classification; the commercial reading is put and met on the words.
- II.10 (conclusion): Precise exposure on both readings and both footings, with the $10,000's dependence on Grace stated. This is what a client needs.

5. Marks

Holistic mark (a contracts academic reading it cold): 84 / 100, High Distinction (low HD)

The answer reads as genuine legal reasoning: it frames each issue from Rocky's position, reads the facts closely, uses authorities for what they decided and distinguishes them on their facts (Gibson, Godecke, Meehan, Coulls), and ends with a precise statement of exposure. Its sources are accurate to the page. It loses marks for two substantive gaps that a strong marker will see at once (Pao On on the request fact; whether AMPL's advance was Rocky's loan), and for a handful of unhedged inferences. With C1 and C2 applied it is about 87 to 88.

Rubric mark (SHEET_v12 read with R-P, R-Y, R-Z, R-AB to R-AE): 81 / 100

Multipliers: Excellent 1.00; Very Good 0.75; Good 0.60; Fair 0.45; Poor 0.20; Omitted 0.

LAWS1150 Mid-Term T3 2026 - Feedback Sheet (Marker A)	Exc	VG	Good	Fair	Poor	Omit'd	
PRELIMINARY (2%)							
. P Claim for reimbursement; Development Agreement	-	x					1.50/2.0
Neither is framed as Rocky's question at the outset; both appear only at the end of Part I.							
I. ROCKY v GRACE (27%)							
. I.A Offer: 5 February call; bullets; Gibson contrast			x				2.25/3.0
Quote the bullets' deciding words.							
. I.B Acceptance: 'Confirmed'				x			2.00/2.0
. I.C Consideration				x			2.00/2.0
. I.D Intention: 'subject to satisfactory conditions'				x			6.00/6.0
. I.E Certainty: illusory promise; Meehan honesty met			x				2.25/3.0
Gibbs CJ's reading is stated as the law; Mason J differs.							
. I.F1 Privity: did Rocky lend anything (agency)					x		0.00/2.5
Further analysis is required as your statement is conclusive.							
. I.F2 Privity: rule, parties, joint promisee, signature				x			7.50/7.5
. I.F3 Routes around privity (may be omitted: R-AB(2))			x				0.75/1.0
II. ROCKY v AMPL (ALTERNATIVELY PIERRE) (51%)							
. II.A Offer: 'expected'; bilateral offer				x			1.875/2.5
A request, not an invitation to treat.							
. II.B Acceptance: oral bargain; Lord Greene MR			x				2.25/3.0
Disclose the analogy's context.							
. II.C1 Consideration: price of Rocky's promise			x				1.125/1.5
Rocky's detriment on the Pierre branch is not stated.							
. II.C2 Existing legal duty rule				x			4.125/5.5
Pao On 632 for the Pierre branch is not named.							
. II.D Intention: cousins and a company				x			5.00/5.0
. II.E Certainty: 'ensure'; 'once Grace repays'				x			1.875/2.5
'once Grace repays' is not tested for illusoriness here.							
. II.F1 Privity: Rocky the promisee				x			0.75/1.0
. II.F2 Who promised: AMPL through Pierre or Pierre				x			4.00/4.0
. II.G The 12 months				x			3.75/5.0
Name the excluded conduct; the interest pattern is unused.							
. II.H 'once Grace repays the Loan'				x			3.375/4.5
Meehan's reason is compressed to two words.							

. II.I1 AMPL's call: burden aspect; own undertaking x 4.00/4.0
. II.I2 Content and assent to the clause x 3.50/3.5
. II.I3 Consideration moving from AMPL x 2.40/4.0
Ensure your statement of the law is complete: Pao On (C1).
. II.I4 Timing and exposure x 3.75/5.0
The March instalment is not addressed.
GLOBAL ROWS (20%)
. R1 Style, clarity, persuasiveness x 3.00/4.0
. R2 Application of law to facts x 2.25/3.0
. R3 Layout and structure (party headings: R-AC) x 2.00/2.0
. R4 Issues and non-issues x 1.20/2.0
. R5 Prioritisation x 1.50/1.5
. R6 Uncertainty and further information x 1.50/2.0
. R7 Terminology x 0.75/1.0
. R8 AGLC4 x 1.875/2.5
. R9 Word count and format x 1.00/1.0
. R10 Consistency across Parts x 0.75/1.0

Arithmetic: - Preliminary: 1.50. - Part I: 2.25 + 2.00 + 2.00 + 6.00 + 2.25 = 14.50; 0 + 7.50 + 0.75 = 8.25; total 22.75 of 27. - Part II, A to F: 1.875 + 2.25 + 1.125 + 4.125 + 5.00 + 1.875 + 0.75 + 4.00 = 21.00; II.G 3.75; II.H 3.375; II.I: 4.00 + 3.50 + 2.40 + 3.75 = 13.65; total 41.775 of 51. - Substantive: 1.50 + 22.75 + 41.775 = 66.025 of 80. - Global: 3.00 + 2.25 + 2.00 + 1.20 + 1.50 + 1.50 + 0.75 + 1.875 + 1.00 + 0.75 = 15.825 of 20. - Automatic deductions: none applied (the D3 and D4 risks in contestable 1 to 3 are graded inside their units, not deducted twice). - Total: 66.025 + 15.825 = 81.85, rounded down to **81**.

With C1 and C2 applied as costed (II.I3 to Excellent, I.F1 to Excellent, P to Very Good unchanged, R4 to Very Good, R10 to Excellent), the rubric mark is about 87.

Marker B

LAWS1150 Mid-Term (T3 2026): Mark B (independent hostile examiner)

Answer marked: MARKS/f9/in/ANSWER.md, at face value, against question.txt, the Instructions, SHEET_v12 read with RULINGS (R-P, R-Y, R-Z, R-AB, R-AC, R-AD and R-AE prevailing), the casebook transcriptions, the Pao On extract, the Trident reading and the saved official judgments.

Verifier: 38 quotations, 0 FAIL; the one CHECK PIN (Brambles 176) is the known parser artefact, and the page image confirms that Lord Greene MR's words sit on 176, before the [177] marker. Body count 1,495; the stated 'Word count: 1,498' is body plus three, as R-P requires, so D7 does not apply. Quoted words are about 13% of the body, with no quotation over 11 words; there are no dashes in the body, no double quotation marks and no contractions; every case name is italicised. The only lint is the expected Trident no-pin line (R-Y(1)).

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1. CERTAIN DEFECTS (100% sure)

C1. Conclusion before analysis (D5, minus 1; R-R(2)). Sentence: 'Grace's 5 February call formed nothing: by asking Rocky to offer a two-year loan, Grace invited an offer rather than making one, and Rocky declined.[^1]' Evidence: R-R(2) and D5 treat a verdict placed before a colon as conclusion-first 'whatever follows it', and the sheet gives 'Rocky lent nothing: …' as the example; this sentence has the same shape. Fix: 'By asking Rocky to offer a two-year loan on 5 February, Grace invited an offer rather than making one,[^1] and Rocky declined, so that call formed nothing.' Word cost: 0 (25 for 25).

C2. Past consideration is stated as an absolute rule, although the course authority creates an exception and the facts set it up (II.I3). Sentence: 'If Pierre promised personally, AMPL's earlier advance is past consideration and cannot support it,[^33] but AMPL's stronger answer is …' Evidence: in the Pao On extract (Lord Scarman for the Board, [1980] AC 614, 629 to 630), 'An act done before the giving of a promise … can sometimes be consideration for the promise', where the act was 'done at the promisors' request', both parties understood it 'was to be remunerated', and the payment would have been enforceable if promised in advance. In Pao On itself, a guarantee was upheld on that basis because the earlier act was done at the guarantor's request. The problem says that on 27 February 'Rocky asked' AMPL to advance the money. 'Cannot support it' is therefore wrong as a statement of law on these facts. The question that decides the point is whether the parties understood on 27 February that the advance would be compensated, and the answer never asks it. *Roscorla* (fn 33) gives only the general rule. Fix: 'If Pierre promised personally, AMPL's earlier advance, though made at Rocky's request, is past consideration, good only if both understood it would be compensated,[^33] which nothing shows; AMPL's stronger answer is …', with fn 33 reading '*Pao On v Lau Yiu Long* [1980] AC 614, 629–30 (Lord Scarman for the Board).' Word cost: plus 11. Funding, with no core lost: (a) in II.I2, delete ', though not necessarily by signing' (minus 5), because Part I has already made the signature point through Mrs Coulls; (b) in II.C2, change 'the rule clearly applies' to 'the rule applies' (minus 1), which also removes an overstatement, since Mason J's words are 'at least when'; (c) in II.E, delete ', as his check-ins did' (minus 4); see contestable point K9. The net change is plus 1, giving a body of 1,496 and a stated count of 1,499.

Nothing else is certain. Every other quotation, pin and speaker was checked at the source page and is right; the points below are matters of judgement or omission.

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2. CONTESTABLE POINTS (with fixes and costs)

K1. The 12 February offer is not reconciled with the finding of no intention (I.A against I.D; R10). The first paragraph concludes that bullet 1 is 'likely an offer', and the third concludes that 'intention to be bound immediately is likely absent'. An offer is a promise made with the intention to be bound on acceptance, so a strict reader sees a contradiction. Fix: end the first paragraph with '… so the first point is likely an offer in form, its qualifier deciding whether it was meant to bind' (plus 7; fund it by deleting 'Consideration would also exist,' and starting the sentence 'Rocky's promise to lend was exchanged for …', minus 4, plus a 3-word cut elsewhere).

K2. Rocky's claim against Grace through AMPL is never addressed (I.F1, 2.5 points). The answer never asks whether, if the

email bound, Rocky performed it by procuring AMPL's advance ('Rocky asked'), and so whether he is owed repayment or AMPL lent as his agent. The conclusion 'Rocky has no contractual claim against Grace' rests only on the email failing and on Grace's promises running to AMPL; it does not deal with the bound branch, in which Rocky still lent nothing himself. Fix: one clause in the privity paragraph, such as 'and even if the email bound, Rocky lent nothing, AMPL advancing on its own account rather than as one contracting for Rocky,[^21]', citing the agency criterion (about plus 22). R-AB(2) allows this to be compressed but not dropped, because it changes whether Rocky has any claim against Grace.

K3. Pao On 632 is missing on the Pierre branch of the existing legal duty rule (II.C2, a required authority). If Pierre promised and the guarantee came first, Rocky's prior duty was owed to AMPL, a third party. The answer's 'with the promisee' gloss on *Wigan* points that way but does not say so, and does not cite *Pao On* 632. Fix: '… and if Pierre promised, a promise to perform a duty owed to AMPL is good consideration,[^x]' (plus 15).

K4. The duty to co-operate is not put (II.H, a required authority: *Beaton* 185, McHugh JA in the minority on the result). Rocky's best answer to the condition 'once Grace repays the Loan' is that AMPL may not rely on non-fulfilment of a condition that its own call helped bring about. The rebuttal is short: AMPL's call does not prevent Grace from repaying. Fix: one clause (about plus 20).

K5. Lord Greene MR's analogy is not disclosed (II.B). Lord Greene MR spoke of the exchange of contracts for the sale of land (*Brambles* 176). The answer applies his words to an oral undertaking without saying it is reasoning by analogy, and *Masters* 361 (required) is absent. Fix: add 'said of exchanges of land contracts' after the quotation (plus 6).

K6. *Niesmann* (Masters 360 to 361) is missing (I.D, a required authority). This is Rocky's best case that 'subject to' words leave the parties unbound until a further agreement is made. *Masters* 363 (Winn v Bull) carries the test, but the grid requires 360 and 361 as well. This was recorded as a residual risk at R-R(7).

K7. The letter of comfort point is not made, and its direction is not given (II.D). *Banque Brussels* concerns a letter of comfort. The answer borrows 'appropriately promissory in character' without saying that Rocky's undertaking resembles such a letter, or that the analogy is weaker here because a price was paid. Fix: one clause (about plus 14).

K8. Port Jackson is cited through a judgment that was reversed, when the report contains one that was upheld (fn 21; II.F2). Mason and Jacobs JJ at 269 were in the High Court majority that the Privy Council reversed in *The New York Star* (1980) 144 CLR 300, where 'their Lordships are in agreement with the judgment of the Chief Justice' (official PC text [28]). Lord Reid's requisites survive, so the proposition is sound, and the answer correctly flags 'rev'd'. Still, Barwick CJ at 240 states the same requisites and is the judgment the Privy Council adopted. Fix: '*Port Jackson Stevedoring Pty Ltd v Salmond & Spraggon (Aust) Pty Ltd* (1978) 139 CLR 231, 240 (Barwick CJ)', with the subsequent history kept or dropped (0 words). AGLC: the placement of 'rev'd' after the ', quoting' clause is also open to argument, because the subsequent history belongs to *Port Jackson*, not to *Scruttons*.

K9. 'as his check-ins did' (II.E) is unclear. It reads as though post-contractual conduct is being used to fix what Rocky promised, which the answer itself rules out at II.G (*Brambles* 164). This is an R1 clarity lapse. Fix: delete it (minus 4); it is used to fund C2.

K10. Two planted facts on the 12 months are not used (II.G). These are the 'appropriate monthly repayments of the interest' from 8 April 2024 to 8 February 2025, and Rocky's own 13 February 2025 email and 5 March 2025 demand. 'Post-contractual conduct cannot interpret the term' disposes of them correctly in law, but a strict marker wants the facts named and set aside (R-AA(3); R-AD(2)). Fix: '… cannot interpret the term, so the monthly interest payments and the parties' later assertions are irrelevant to its meaning,' (plus 14).

K11. 'The clause' is read only one way (II.F1; R-M). The answer assumes throughout that the clause included before signing was the guarantee. If it was the $10,000 promise, the written clause is in AMPL and Grace's contract, and Rocky could not enforce it by privity, so his claim would rest on the oral bargain alone. Fix: one clause (about plus 18).

K12. Rocky's answer at II.I2 is put but never met. The paragraph ends on 'Rocky would answer that the $10,000 priced his own words, not the clause', with no lean. The final paragraph's 'if Rocky assented' then carries an open question with no indication of which way it falls. Fix: '…, which is the stronger view, since nothing shows the clause was read out' (plus 12), or the contrary lean with its reason.

K13. Gibbs J's dictum is obiter, and the answer relies on it to decide intention (I.D; R-F). 'Gibbs J doubted' signals that it is tentative, but the dictum carries part of the decision. Fix: 'Gibbs J doubted, obiter, that …' (plus 1).

K14. Privity is stated as a single rule (fn 13). 'Only a party who provided consideration may enforce a contract' merges the two requirements, whereas the casebook at [11.10] says the privity rule 'is separate from the rule that consideration must move from the promisee'. Windeyer J at 495 ('Doubtless the two requisites merge in the strict view of a contract as a bargain') supports the merged form, so this is defensible. Fix if wanted: '… only a party may enforce a contract, consideration also having to move from that party' (plus 3).

K15. *Pace* 150 to 151 is not cited, and *Beaton* 181 and *Musumeci* 745 are absent (I.E, II.C1; required authorities). Each costs a footnote and a few words.

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3. Currency per authority (weeks 1 to 4 only; WebSearch and the saved official texts)

Authority	Status
Gibson v Manchester City Council [1979] 1 WLR 294	Good law (HL).
Empirnall (1988) 14 NSWLR 523	Good law (NSWCA).
Australian Woollen Mills (1954) 92 CLR 424	Good law (HCA, the Court).
Ermogenous (2002) 209 CLR 95	Good law (HCA).
Masters v Cameron (1954) 91 CLR 353; *Winn v Bull* (1877) 7 Ch D 29	Good law.
Godecke v Kirwan (1973) 129 CLR 629	Good law; Gibbs J at 646 to 647 is obiter (K13).
Meehan v Jones (1982) 149 CLR 571; *Thorby v Goldberg* (1964) 112 CLR 597	Good law.
Coulls (1967) 119 CLR 460	Good law; Windeyer J dissented on the result, and the answer discloses

	this. *Trident* criticised the privity rule but did not overrule it.
Brambles (2001) 53 NSWLR 153; *Integrated Computer Services* (1988) 5 BPR 11,110; *Eccles v Bryant* [1948] Ch 93	Good law.
Port Jackson (1978) 139 CLR 231	**REVERSED** by the Privy Council, *The New York Star* (1980) 144 CLR 300; [1981] 1 WLR 138 (official PC text [9], [28]). Mason and Jacobs JJ, whom the answer cites, were in the majority that was reversed. The answer flags 'rev'd' correctly. Lord Reid's requisites (*Scruttons* [1962] AC 446, 474) remain good law. See K8.
Sundell (1955) 56 SR (NSW) 323	Not overruled. In NSW the rule is qualified by the practical-benefit approach (*Musumeci* (1994) 34 NSWLR 723, first instance), which does not affect this use of it.
Wigan v Edwards (1973) 47 ALJR 586	Good law.
Banque Brussels (1989) 21 NSWLR 502	Good law; a first-instance decision (Rogers CJ, Comm Div), and the answer does not present it as appellate.
Upper Hunter (1968) 118 CLR 429; *Scammell v Ouston* [1941] AC 251	Good law.
Trident (1988) 165 CLR 107	Good law.
Roscorla v Thomas (1842) 3 QB 234	Good law for the general rule, but qualified by *Pao On* 629 to 630 (C2).

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4. Margin comments (paragraph by paragraph, in the marker's style)

1. **I, the offer.** A good, close textual reading of 'I will lend' against 'may be prepared to sell'. The opening verdict comes before its reasons (C1). 'Likely an offer' is in tension with your later finding of no intention, so reconcile the two (K1).
2. **The acceptance and consideration.** Correct, and *Empirnall*'s criterion is applied to 'confirm agreement'. Your note that Grace's promise to repay is 'implied' is well marked.
3. **Intention.** This is the strongest paragraph: you put the objective test and the onus, put Grace's case on *Godecke* and distinguish it on 'reasonably' against 'satisfactory'. Rocky's best authority, *Niesmann*, is not used (K6), and you should flag Gibbs J's dictum as obiter if it is to carry the decision (K13).
4. **Certainty.** You put and meet the duty of honesty, and Gibbs CJ's 'only to the fulfilment of a condition' is used precisely. *Pace* is absent (K15).
5. **Privity.** The 'right result for the wrong reason' point on Mrs Coulls's signature is excellent. You do not consider whether AMPL lent as Rocky's agent, or Rocky's position if the email did bind (K2).
6. **Conclusion for Part I.** Clean. The Development Agreement and reimbursement are disposed of correctly.
7. **II, the offer and acceptance.** You identify the bilateral offer correctly. Lord Greene MR's words were said of exchanges of land contracts, so disclose the analogy (K5).
8. **Agency.** The facts are well weighed ('you' against office and control). Cite Barwick CJ at 240, not the reversed joint judgment (K8), and say what further information would decide whom Pierre spoke for.
9. **Consideration and the existing legal duty rule.** You put the rule and meet it on 'asked' and on 'more than' the guarantee. Leave out 'clearly'. *Pao On* 632 is missing on the Pierre branch (K3).
10. **Intention.** You handle the onus point on presumptions well. The letter of comfort analogy and its direction are missing (K7).
11. **Certainty of 'ensure'.** Sound. 'As his check-ins did' blurs the line you draw at paragraph 14 (K9).
12. **Is Rocky bound by the clause?** You state the burden aspect correctly and apply *Empirnall* at 535 to 536 well. You put Rocky's answer but never meet it, so give a lean (K12). 'The clause' is read only one way (K11).
13. **AMPL's consideration.** 'Cannot support it' is wrong on these facts: Rocky asked for the advance, which engages *Pao On* (C2). The fallback based on AMPL's signing is good.
14. **The 12 months.** The method is careful (ambiguity, genesis, post-contractual conduct excluded), and the 'recorded' argument is a strong one. Name the monthly payments and the 13 February email and set them aside (K10).
15. **The condition.** The condition precedent is correctly placed, and you put and meet the commercial reading. The duty to co-operate is missing (K4).
16. **Conclusion for Part II.** This states Rocky's exposure precisely on each reading of the 12 months, as R-AD requires; the advice is clear.

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5. Marks

Holistic mark (senior contracts lecturer, at face value): 83 / 100 (Distinction, high)

This is a disciplined, well-sourced piece of advice with no misquotation. It reads close to the problem's words, puts each opponent's best point and meets most of them, and its consequence paragraph is exact. Four things keep it out of the High Distinction band. It states past consideration wrongly on a fact the problem plants (C2). It omits *Pao On* entirely, even though the problem has a request followed by a guarantee. It leaves gaps in the second half: the duty to co-operate, the letter of comfort, the reading of 'the clause', and Rocky's unmet answer on assent. And it omits the agency question for Rocky's claim against Grace.

Rubric mark (SHEET_v12 with RULINGS): 78 / 100

LAWS1061-format grid (x = grade; multipliers: Exc 1.00, VG 0.75, Good 0.60, Fair 0.45, Poor 0.20, Omitted 0)

	Exc	VG	Good	Fair	Poor	Omit'd	Pts	Score
PRELIMINARY								
P Claim C3 and the Development Agreement				x			2.0	2.00
I. ROCKY v GRACE (27%)								
I.A Offer (Gibson both ways)				x			3.0	2.25
Reconcile 'likely an offer' with no intention (K1).								
I.B Acceptance (Empirnall 534)				x			2.0	2.00
I.C Consideration				x			2.0	1.50
The Loan Agreement's fresh terms and AMPL's price are not named at this point.								
I.D Intention: 'subject to satisfactory conditions'				x			6.0	4.50

Masters 360 to 361 (Niesmann) is missing (K6).

I.E Certainty: illusory promise; duty of honesty x 3.0 2.25

Pace 150 to 151 is missing (K15).

I.F1 Rocky lent nothing; agency; 'Rocky asked' x 2.5 0.50

Further analysis is required: agency is not considered (K2).

I.F2 Privity: rule, parties, joint promisee, 'never signed' x 7.5 7.50

I.F3 Routes around privity (may be omitted: R-AB(2)) x 1.0 1.00

II. ROCKY v AMPL (ALTERNATIVELY PIERRE) (51%)

II.A Offer: 'expected'; a bilateral offer x 2.5 2.50

II.B Acceptance; Lord Greene MR's analogy x 3.0 2.25

The analogy is not disclosed; Masters 361 is missing (K5).

II.C1 Consideration moving from Rocky x 1.5 1.13

Beaton 181 and Musumeci 745 are missing.

II.C2 The existing legal duty rule x 5.5 4.13

Pao On 632 on the Pierre branch is missing (K3).

II.D Intention: cousins and a company x 5.0 3.75

The letter of comfort point and its direction are missing (K7).

II.E Certainty of 'ensure' x 2.5 2.50

II.F1 Rocky the promisee; 'the clause' both ways x 1.0 0.60

'The clause' is read one way only (K11).

II.F2 Who promised: AMPL or Pierre x 4.0 3.00

No further information or direction; the reversed judgment is cited (K8).

II.G The 12 months x 5.0 3.75

No authority for the objective reading at this unit; the planted facts are not named (K10).

II.H The condition 'once Grace repays the Loan' x 4.5 3.38

The duty to co-operate is missing (K4).

II.I1 The burden aspect; Rocky's own undertaking x 4.0 4.00

II.I2 Assent to the written words x 3.5 2.63

Rocky's answer is put but not met (K12).

II.I3 Consideration moving from AMPL x 4.0 2.40

Ensure your citation precisely supports the proposition: Pao On 629 to 630 is required, and 'cannot support it' is wrong on 'Rocky asked' (C2).

II.I4 Timing and consequences x 5.0 3.75

The March instalment is not addressed specifically.

GLOBAL ROWS (20%)

R1 Style, clarity, conciseness, persuasiveness x 4.0 3.00

R2 Application of law to facts, using authority x 3.0 2.25

R3 Layout and structure x 2.0 1.50

R4 Issues and non-issues x 2.0 1.50

R5 Prioritisation x 1.5 1.50

R6 Uncertainty and further information x 2.0 1.50

R7 Terminology x 1.0 1.00

R8 Citation (AGLC4) x 2.5 1.88

R9 Word count and format x 1.0 1.00

R10 Consistency across Parts x 1.0 0.75

Arithmetic: - Preliminary: 2.00 - Part I: 2.25 + 2.00 + 1.50 + 4.50 + 2.25 + 0.50 + 7.50 + 1.00 = 21.50 - Part II: 2.50 + 2.25 + 1.125 + 4.125 + 3.75 + 2.50 + 0.60 + 3.00 + 3.75 + 3.375 + 4.00 + 2.625 + 2.40 + 3.75 = 39.75 - Units: 2.00 + 21.50 + 39.75 = 63.25 of 80 - Global rows: 3.00 + 2.25 + 1.50 + 1.50 + 1.50 + 1.50 + 1.00 + 1.875 + 1.00 + 0.75 = 15.875 of 20 - Subtotal: 79.125 - Automatic deductions: D5 minus 1 (C1). D2, D3, D4 and D6 to D13: none. - Total: 78.125, rounded down to **78**.

If C1 and C2 are fixed as in section 1, and nothing else changes, D5 falls away and II.I3 rises to Very Good (3.00). The rubric mark becomes 79.725, which rounds down to 79. The rest of the gap lies in the omissions K2 to K7, K10 and K11, which together need roughly 120 words that the 1,497 ceiling does not leave. Any further gain therefore requires cutting text that is not part of a core requirement, not adding to it.